

Form No.HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN
(JUDICIAL DEPARTMENT)**

Case No. I.C.A. No.453 of 2019

Adeel Arshad *Versus* Ishfaq Ahmad Chaudhry, D.C. Khanewal, etc.

<i>Sr. No. of order/ Proceeding</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of parties or counsel, where necessary.</i>
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16.06.2021 Syed Muhammad Asad Abbas, Advocate for the appellant.
Malik Altaf Hussain Raan, A.A.G.

The appellant by filing instant Intra Court Appeal under section 19 of the Contempt of Court Ordinance, 2003 has challenged the validity of order dated 27.11.2019 passed by learned Single Judge in Chamber whereby Criminal Original No.1162-W of 2019 filed by the appellant was disposed of with the following observation:-

*“This criminal original has been filed on the ground that order passed by this Court dated 12.4.2019 has not been complied with. Learned Law Officer submits that in compliance of this Court’s order, representation of the petitioner has already been decided on 09.5.2019. As order passed by this Court has been complied with, therefore, no further proceedings are required in this criminal original which is accordingly **disposed of**. However, petitioner will be at liberty to challenge the aforesaid order dated 09.5.2019 through appropriate proceedings, if need be.”*

2. Precisely, the facts of the case as narrated in the ICA are that appellant’s father, namely, Muhammad Arshad was a Government contractor. He completed several schemes on contract basis with the respondent/authorities. After completion of work awarded to him, he submitted bills for withdrawal of the outstanding amount to the respondent/authorities with regard to the works done by him, but the respondents defaulted in the payment. In this backdrop Muhammad Arshad, real father of the appellant approached this Court by filing Writ Petition No.3792 of 2016 titled Muhammad Arshad Vs D.C.O., etc. in his lifetime and obtained a direction against the respondent/authorities to release

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his outstanding amount to the tune of Rs.19,94,292/- within the stipulated period, *vide* order dated 03.05.2016 which is hereby reproduced as under:-

“The claim of the petitioner has not been disputed by the respondents; therefore, they are directed to make payment to the petitioner within 15-days”

3. In reference to said order the appellant’s father moved an application dated 10.05.2016 to the District Co-Ordination Officer, Khanewal for release of his outstanding amount. Meanwhile appellant’s father Muhammad Arshad was died on 7.12.2016 leaving behind a widow, a son (*present appellant*) and three daughters as his legal heirs and the appellant being sole male member of the family approached the respondent authorities for the recovery of outstanding bills of his deceased father which was lying with them but the respondents did not pay the said amount, as a result of which, appellant being constrained to file Writ Petition No.5820 of 2019 before this Court which was disposed of by learned Single Judge in Chamber *vide* order dated 12.4.2019 in the following manner:-

“With the concurrence of the parties, let a copy of this writ petition alongwith its annexures including copy of petitioner’s application placed alongwith this writ petition as annexure-D at page-13 be transmitted to the respondent No.1/Deputy Commissioner, Khanewal, with a direction to decide the same strictly in accordance with law through a speaking order and after hearing all concerned, if required preferably within a period of two weeks from the date of receipt of certified copy of the order of this Court.

2. **Disposed of.**”

4. In compliance with said order appellant approached Deputy Commissioner, Khanewal (*respondent No.1*) for redressal of his grievance but instead of complying with the orders of this Court he lingering on the matter. Resultantly, the appellant filed Criminal Original No.1162-W of 2019 before this Court wherein respondent authorities filed their reply and also submitted order dated 9.5.2019 passed by respondent No.1. Paras-5 and 6 of the

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said order were relevant and the same are hereby reproduced as under:-

“5. The parties have been heard at length. The necessary record produced by the Building Department, Khanewal has also been examined. The Executive Engineer, Building Division, Khanewal has admitted this fact that the contractor has completed the work but the remaining amount whatsoever has not been paid to the contractor as the funds have been lapsed.

6. In view of the above, the petition is disposed of with the direction to the Executive Engineer Building Division, Khanewal, who shall move a request to the Government for provision of funds and release the same to the contractor as per law/policy. The Deputy Director (Planning), Khanewal is hereby directed to monitor the all process.”

5. Having gone through the entire record as well as order dated 9.5.2019 passed by respondent No.1, the learned Single Judge in Chamber while passing the impugned order dated 27.11.2019 disposed of the criminal original of the appellant.

6. The appellant contested the impugned order by filing instant Intra Court Appeal.

7. While reiterating the facts as stated above, learned counsel for the appellant, submits that the impugned order passed by learned Single Judge in Chamber is against law, rules and principles on the subject as the same has been passed in haste without going through the record, hence, the same is liable to be set aside.

8. Contentions have been opposed.

9. We have heard the learned counsels for the parties at some length and perused the record minutely.

10. It is evident from the record that order dated 12.4.2019 passed by learned Single Judge in Chamber while disposing of the writ petition filed by the appellant, directed Deputy Commissioner, Khanewal (*respondent No.1*) to decide the application (*Annex-D*) within a period of two weeks from the date of receipt of certified copy of the order of this Court. This application was decided by the Deputy Commissioner, Khanewal (*respondent No.1*) through detailed and speaking order on 9.5.2019.

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In this scenario, the contempt petition filed by the appellant had become infructuous which was rightly disposed of by learned Single Judge in Chamber.

11. Much importantly, another question arises here that whether this Intra Court Appeal is maintainable or not in the light of order recently delivered by a learned Division Bench of this Court in case titled Muhammad Mohsin Rafiq and others Versus Messrs Siddiqui & Co. (2021 CLC 01), in answer whereof, learned counsel for the appellant could not furnish any lawful justification rather failed to satisfy the Court.

12. Admittedly, through order dated 27.11.2019 no contempt proceedings were initiated against the contemnor and this disposal of the criminal original is not amount to an order which is appealable under section 19 of the Contempt of Court Ordinance, 2003. Article 204 of the Constitution of Islamic Republic of Pakistan, 1973 conferred jurisdiction to the Superior Courts of the country to punish those persons who committed violence or deny to comply with order of the Superior Courts. In this regard ‘The Contempt of Court Ordinance, 2003’ was promulgated wherein jurisdiction has been provided under section 5 of the provisions of the Ordinance *ibid* to the Superior Courts to convict and punish the contemnor in contempt of court. Section 19 of the Ordinance *ibid* provides a remedy of appeal which provision of law reads as under:-

*“19. **Appeal.**- (1) Notwithstanding anything contained in any other law or the rules for the time being in force, orders passed by a superior court in cases of contempt shall be appealable in the following manner:-*

- (i) In the case of an order passed by a single judge of a High Court an intra-court appeal shall lie to a bench of two or more judges;*
- (ii) In a case in which the original order has been passed by a division or large bench of a High Court an appeal shall lie to the Supreme Court; and*
- (iii) In the case of an original order passed by a single judge or a bench of two judges of the Supreme Court an intra court appeal shall lie to a bench of three judges and in case the original order was passed by a bench of*

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three or more judges an intra-court appeal shall lie to a bench of five or more judges.

(2) *The appellate court may suspend the impugned order pending disposal of the appeal.*

(3) *The limitation period for filing an appeal shall be thirty days.”*

13. In the above cited order, this Court while defining the word “**orders**” which has been passed in the contempt proceedings observed as under:-

“The main controversy revolves around the word “orders passed in cases of contempt”. As the plural word “orders” has been used in the above provision of Section 19 of the Ordinance ibid. It is appropriate to determine whether all kind of orders including interim, interlocutory or the final order passed in contempt proceeding are appealable. As the word orders has not been defined in the very Ordinance, it is appropriate to trace out its meaning from sister legislation as parimateria.

In Section 2(14) of the Civil Procedure Code word order has been described as:

“(14) “Order” means the formal expression of any decision of a Civil Court which is not a decree;

According to Order XLIII, C.P.C. only the effective, determinative orders are appealable. Normally an order has following characteristics:-

- (i) Order which finally resolved the controversy.*
- (ii) Order which materially and directly affect the final decision.*
- (iii) The order which causes some inconvenience/prejudice the party without there being any final determination.*
- (iv) The routine order passed to facilitate the progress in reaching the final order or judgment.*

The conjoint reading of definition of word “order” or “orders” provided in section 2(14) of C.P.C. and in Order XLIII, C.P.C. it can be said that word “order” means “the formal expression of any final decision” and any order which is not founded on any decision is devoid of attaining the status of an order. The challenge of each and every interim procedural kind of order will over-flood the litigation and would make the very litigation as well as the proceedings whereunder as unending. This liberty would practically negate the spirit and intent behind the legislation of Article 204 of the Constitution entire proceedings original jurisdiction of the superior court (High Court) would become virtually inexecutable and worthless. Only such orders, decisions, judgments which finally terminate the contempt proceedings against the contemnor are appealable. The word “order passed in contempt” means the order only awarding

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punishment and it is the said order which can be assailed in Intra Court Appeal, whereas the interlocutory interim or procedural orders do not fall within the ambit of the order passed in contempt of Court. Reliance is placed on the case titled West Pakistan Water and Power Development Authority through its Chairman v. Chairman, National Industrial Relations Commission (PLD 1979 SC 912) wherein the Hon'ble Supreme Court (Five Members Bench) has held that:-

“When therefore, section 10 talks of an “order under this Act” being appealable, in its very nature confining ourselves to the facts and circumstances of the present case, it means an order of conviction and not an order of the kind involved herein.”

*Further in M.H.Khondkar and another v. The State and another and M. Noman vs. The Dacca Improvement Trust and 3 others (1971 SCMR 743) one M.Noman filed contempt petition against Dacca Improvement Trust and the said petition was dismissed and a show-cause notice was issued to said Noman as to why he should not be punished in contempt of the Court. He challenged the rejection of his contempt petition as well as issuance of show-cause notice to him, in the Special Leave to appeal and the Hon'ble Supreme court of Pakistan dismissed the said petition as such it can safely be observed that matter of the initiation or exonerating the contemnor from contempt proceedings is exclusively between the court and the contemnor and any procedural, interlocutory, interim order passed in this regard do not fall within the domain of Section 19 of the Ordinance, 2003 *ibid* and no Intra Court Appeal is available against such orders.”*

14. In the light of dictum laid down by this Court in the aforesaid case law, this Intra Court Appeal being not maintainable, is hereby **dismissed in limine.**

(CH. MUHAMMAD IQBAL)
JUDGE

(AHMAD NADEEM ARSHAD)
JUDGE